

Employment First Resource List



Revised July 2015

Introduction

Over the past decade, the concept of Employment First – the idea that employment in integrated settings within the community should be the priority service option - has emerged in the disability field. The result has been ongoing development of a multitude of documents pertaining to Employment First, including state legislation, policies, reports, articles, etc. The attached list, developed by the State Employment Leadership Network (SELN), is an attempt to provide a comprehensive listing of these documents, as a resource to policymakers, advocates, and others. Originally developed in 2010, this Resource List has been regularly updated as Employment First efforts have evolved across the United States and now internationally.

A primary emphasis with this list is identifying legislation, regulations, and policy directives implementing Employment First policies. For states with an Employment First Policy, this is the first document listed. Also included are a variety of additional Employment First related reports from individual states, developed by official state workgroups and grassroots initiatives of stakeholders working to affect change. For those states where Employment First activities have not been identified, information on state efforts emphasizing integrated employment have been noted. Along with state information, this Resource List also includes a variety of documents that provide a national perspective, as well as resources from Canada.

In compiling this list, an Employment First policy has been defined as an official directive from a state government agency stating that employment in the community in the general workforce is the first and primary option for individuals with disabilities. Use of the term “Employment First” per se has not necessarily been a requirement for including or excluding a document. Instead the focus has been on documents that reinforce the principles of Employment First, whether that specific language is used or not. There are number of examples (e.g., Washington State) where the term “Employment First” is not part of the policy, and yet clearly the policy is an example of Employment First principles. It should also be noted that there has been a liberal approach to defining a piece of legislation, regulation, or policy directive as an “Employment First policy”. In some cases, these policies consist of highly detailed, substantive, and specific legislation or policy directives. In other cases, the Employment First policy consists of an Executive Order or similar directive that contains language endorsing integrated employment as the first and primary service option for publicly funded services, with limited language in terms of specifics. In other cases, language has been identified within an overall policy directive that clearly aligns with Employment First, although such language may only be a few sentences (e.g., Colorado). With the ongoing expanded interest in Employment First, future editions of this resource list will take a closer look at these policies from a qualitative perspective.



A summary of the status of Employment First is as follows:

- Employment First efforts have been identified across the United States, and also in Canada.
- Thirty states have been identified that have something akin to an official Employment First policy (based on legislation, policy directive, etc.). Fourteen states have passed legislation stating that integrated employment is preferred over other service options: **Alaska, California, Delaware, Illinois, Kansas, Maine, Mississippi, Ohio, Oklahoma, Oregon, Texas, Utah, Washington, Wyoming.** The other 16 (**Arkansas, Colorado, Connecticut, District of Columbia, Florida, Louisiana, Maryland, Massachusetts, Minnesota, Missouri, New Jersey, Pennsylvania, Rhode Island, South Carolina, Tennessee, Virginia**) have a policy directive, Executive Order, or similar official policy statement, but not legislation. There are some states that have both legislation and a non-legislative policy directive (e.g., Maine, Mississippi, Oklahoma, Oregon, Washington).
- Sixteen of these policies are cross-disability: **Alaska, Arkansas, Delaware, District of Columbia, Florida, Illinois, Kansas, Maine, Minnesota, Mississippi, New Jersey, Oklahoma, Texas, Utah, Virginia, and Wyoming.** The remainder of states policies are focused exclusively on individuals with intellectual and developmental disabilities: **California, Colorado, Connecticut, Louisiana, Maryland, Massachusetts, Missouri, Ohio, Oregon, Pennsylvania, Rhode Island, South Carolina, Tennessee, Washington.** (Note: Oklahoma's legislation is cross-disability; its policy directive is specific to individuals with intellectual and developmental disabilities.)
- In addition to the 30 states with Employment First policies, the other 20 states on this list (**Alabama, Arizona, Georgia, Hawaii, Idaho, Indiana, Iowa, Kentucky, Michigan, Montana, Nevada, New Hampshire, New Mexico, New York, North Carolina, North Dakota, South Dakota, Vermont, West Virginia Wisconsin**) have Employment First-type efforts and initiatives underway, but at this point it appears no official Employment First policy has been issued stating that integrated employment is the preferred service option. These vary significantly in terms of their level of activity ranging from initial expressions of interest in Employment First with limited follow-up, to robust systems change efforts. In terms of specific activities in some of these states, **New York** has a September 2014 Executive Order that mandates the development of an Employment First policy. **Nevada** has an Executive Order establishing a Governor's Taskforce on Integrated Employment. Three states (**Alabama, Hawaii, Kentucky**) have been identified that have Employment First legislation that has been proposed, but hasn't passed. **North Dakota** passed legislation creating a Committee on Employment of People with Disabilities to support the goal of Employment First. However this legislation does not institute Employment First as a policy – i.e., it does not specifically prioritize integrated employment over other service options.

It is important to recognize that the level of resources on this list associated with a state should not necessarily be an indicator regarding the state's focus on employment for people with disabilities.



There are states that have not been strongly linked with Employment First, who have consistently had relatively strong outcomes in terms of employment of people with disabilities. However, the emergence of Employment First as a national movement has served as a catalyst for an increased focus on employment of people with disabilities across the United States.

In the course of developing this document, the focus has been on including as many examples as possible, particularly in terms of resources from individual states. The underlying rationale for doing so is to provide an understanding of the wide range of approaches to Employment First. Inclusion of specific policies and documents on this list should in no way be viewed as an endorsement of these documents, and as noted, the Employment First legislation/policies that have been developed vary significantly in terms of the strength and clarity of their language.

The wide range of attention and emphasis on Employment First has been encouraging, and provides a potential catalyst for the long needed increase in workforce participation for individuals with disabilities. At the same time, it is important to recognize that creation of documents, reports, and policies, in and of itself, will not result in increases in workforce participation, without a long-term commitment to action steps that make the Employment First vision a reality for all citizens with disabilities. Setting a vision and direction is a starting point – but it must be done in conjunction with comprehensive systems change that results in shifting of resources towards integrated employment, a service system that provides consistent and high quality employment assistance and supports, and measurement and accountability for achieving employment outcomes. Employment First is also about more than just simply changing how services and supports for people with disabilities are provided – it is a catalyst for and reflective of an ongoing fundamental cultural shift and view by policymakers, public officials, service systems, service providers, employers, and most importantly by individuals with disabilities themselves, that views people with disabilities as full participants in the economic mainstream, working side-by-side with their fellow citizens.

General Information on Employment First

1. **APSE – Association of People Supporting EmploymentFirst Information and Publications**

Section of APSE website devoted to Employment First with array of information and resources including the APSE Employment First Statement , outlining key principles:

www.apse.org/employment-first

2. **Intellectual and Developmental Disabilities Article**

Employment First: A Beginning Not an End: August 2011 Intellectual and Developmental Disabilities journal article summarizing the principles of Employment First -

<http://aaidjournals.org/toc/mere/49/4>

3. **NGA Report – A Better Bottom Line: Employing People With Disabilities – Blueprint for Governors**

2013 report from the National Governor’s Association, that notes Employment First as an effective strategy, and documents the adoption of it by a number of states -

www.nga.org/files/live/sites/NGA/files/pdf/2013/NGA_2013BetterBottomLineWeb.pdf



4. NACDD Report – The Time is Now: Embracing Employment First

November 2011 report from the National Association of Councils on Developmental Disabilities, providing an overview of Employment First, with a particular focus on DD Council efforts - www.acl.gov/programs/aidd/Program_Resource_Search/Resources/embracing-employment-first.aspx

5. NASDDDS Article – Workers First: Article from June 2009 Community Services Reporter

Published by National Association of State Directors of Developmental Disabilities Services providing an overview of Employment First efforts - www.nasddds.org/resource-library/employment/employment-resource-documents/workers-first

6. NTAR Leadership Center Blog: Blog post on Employment First by Wendy Parent, Kansas University

- <http://ntarseedingchange.blogspot.com/2010/03/employment-first.html>

7. ODEP-USDOL

- a. ODEP Employment First Leadership Mentor Program: Information on the US Department of Labor Office of Disability Employment Policy's Employment First Leadership Mentor Program - www.dol.gov/odep/topics/EmploymentFirst.htm
- b. Employment First Memo: January 2009 memo from the US Department of Labor Office of Disability Employment Policy stressing importance of Employment First

8. SELN Employment First Publication: “Q & A’s on State Employment First Policies”

Publication from the State Employment Leadership Network (SELN) providing an overview of Employment First, and specific efforts in Colorado, Florida, Oklahoma, Pennsylvania, Tennessee, Washington State, Georgia, Minnesota, and Indiana - www.selnmembers.org/components/com_wordpress/wp-content/uploads/2008/03/DMR%20request%20Employment%20Policy%203-08rev.pdf



State Specific Information

1. ALABAMA

- a. **AL Legislation (proposed):** The Alabama Employment First Initiative Act, originally introduced in April 2013 - <http://alisondb.legislature.state.al.us/ALISON/SearchableInstruments/2013RS/PrintFiles/SB464-int.pdf>
- b. **DD Council Fact Sheets:** Fact sheets from the Alabama Council on Developmental Disabilities on Employment First Legislation

2. ALASKA

- a. **AK Legislation (passed):** Text of HB 211, signed into law in May 2014. Legislation is cross-disability, and specifies that Employment First applies to individuals receiving transition services as well as adults - www.legis.state.ak.us/basis/get_bill_text.asp?hsid=HB0211Z&session=28
- b. **AK Employment First Legislative Packet:** The Employment First Bill - Supporting Research Packet Overview developed for legislators as part of effort to pass Employment First legislation - <http://dhss.alaska.gov/gcdse/Documents/committees/et/FullPacket.pdf>

3. ARIZONA - Arizona Department of Economic Security Division of Developmental Disabilities summary of Arizona efforts on Employment First - www.azdes.gov/landing.aspx?id=14524

4. ARKANSAS

- a. **AR Employment First Executive Order:** Governor's 2010 Executive Order establishing the Arkansas Employment First Initiative
- b. **AR Task Force Report:** Final Report of Arkansas Employment First Task Force - www.daas.ar.gov/pdf/NewsEvents/Employment%20First%20Task%20Force%20Report%20-%20Final.pdf

5. CALIFORNIA

- a. **CA Legislation (passed):** Text of AB 1041, California's legislation on Employment First, signed into law in October 2013, establishing an Employment First policy for individuals served by the state's developmental disability system - www.leginfo.ca.gov/pub/13-14/bill/asm/ab_1001-1050/ab_1041_bill_20131009_chaptered.pdf
- b. **CA Legislation (summary):** Summary from State Council on Developmental Disabilities on AB 1041, establishing an Employment First policy - www.scdd.ca.gov/res/docs/pdf/Employment_First/Employment%20First%20Policy%20Summary%20SCDD%20CECY.pdf
- c. **CA Legislation (passed):** Text of AB 287, California's legislation on Employment First, signed into law in October 2009, establishing Employment First Committee, and calling for the establishment of an Employment First Policy - www.leginfo.ca.gov/pub/09-10/bill/asm/ab_0251-0300/ab_287_bill_20091011_chaptered.pdf
- d. **Committee on Employment First:** Materials from State Council on Developmental Disabilities Committee on Employment First - [www.scdd.ca.gov/Employment_First_Policy_\(AB_2424\).htm](http://www.scdd.ca.gov/Employment_First_Policy_(AB_2424).htm)
- e. **CA DD Council Report:** 2012 Annual Report from State Council on Developmental Disabilities on Employment First - www.scdd.ca.gov/res/docs/pdf/Employment_First/2012%20EFC%20Annual%20Report%20Jan%2016%202013.pdf



6. COLORADO

- a. **Policy on Integrated Employment:** Colorado Department of Health Care Policy and Financing – Services for Individuals with Intellectual and Developmental Disabilities rule 8.609.9 (formerly Division for Developmental Disabilities rule 16.626) stating that integrated employment is considered the primary service option for adults Day Habilitation Services and Supports - <http://www.sos.state.co.us/CCR/GenerateRulePdf.do?ruleVersionId=5649&fileName=10%20CCR%202505-10%208.600>
- b. **Proposed changes to Policy on Integrated Employment:** 2005 recommendations for strengthening policy on integrated employment to ensure integrated employment is the primary service option - <http://cospl.coalliance.org/fedora/repository/co%3A7116/hu252em7200505internet.pdf>

7. CONNECTICUT

- a. **CT Employment First Policy:** Employment First Policy issued by Connecticut Department of Developmental Services issue in April 2011 - www.ct.gov/dds/lib/dds/dds_manual/ic5/ic5po001_employment_first.pdf
- b. **CT Policy Regarding Employment as a Priority:** Companion to April 2011 Employment First policy regarding implementation steps in individual planning process: www.ct.gov/dds/lib/dds/dds_manual/ic5/ic5pr001_employment_first.pdf
- c. **CT DDS Employment First Overview:** Web page providing overview and resources materials regarding Connecticut's Employment First efforts - www.ct.gov/dds/cwp/view.asp?q=492524

8. DELAWARE

- a. **DE Employment First Legislation (passed):** Text of House Bill 319, Delaware's cross-disability legislation on Employment First, signed into law in July 2012 - [http://legis.delaware.gov/LIS/lis146.nsf/vwLegislation/HB+319/\\$file/legis.html?open](http://legis.delaware.gov/LIS/lis146.nsf/vwLegislation/HB+319/$file/legis.html?open)
- b. **DE Employment First Statement:** Statement from Delaware Division of Developmental Disabilities Services on Employment First - www.dhss.delaware.gov/ddds/emp_first.html

9. DISTRICT OF COLUMBIA

- a. **DC Employment First Policy** – District of Columbia Department of Disability Services Employment First Policy - <http://dds.dc.gov/publication/employment-first-policy>
- b. **DDS Employment First Summary:** Department on Disability Services web page providing overview of District's Employment First efforts - <http://dds.dc.gov/page/employment-first>
- c. **Mayoral Proclamation on Employment First:** October 2012 Mayoral Proclamation declaring the District of Columbia an Employment First State
- d. **D.C. P & A Employment Report:** Report from University Legal Services, protection and advocacy program for District of Columbia, advocating support for Employment First efforts. Includes copy of October 2012 Mayoral Proclamation in appendix - www.uls-dc.org/Employment%20Report_FINAL.pdf

10. FLORIDA

- a. **FL Executive Order:** October 2013 Executive Order directing state agencies to identify financing and contract methods that will prioritize employment - www.flgov.com/wp-content/uploads/orders/2013/13-284-disabilities.pdf
- b. **Employment First Florida:** Website of Employment First Florida, containing a variety of resources - www.employmentfirstfl.org



- c. **FL DD Council Employment First Website:** Information from Florida Developmental Disabilities Council on Employment First efforts - www.fddc.org/Employment
- d. **Developmental Disabilities Council Employment First Statement:** Statement from Florida DD Council in support of Employment First - www.fddc.org/about/employment

11. GEORGIA:

- a. **Employment First Georgia Website:** www.employmentfirstgeorgia.org
- b. **GA DD Council Statement:** Statement issued in 2010 by Georgia Developmental Disabilities Council calling for an Employment First policy in the state:
www.gcdd.org/wp-content/uploads/2010/09/employmentfirstpolicypaper.pdf

12. HAWAII – Hawaii Employment First Legislation (proposed) – Employment First bill, H.B. 860, proposed in 2015 - www.capitol.hawaii.gov/session2015/bills/HB860_.HTM

13. IDAHO - Employment 1st Consortium: Information on the Idaho Employment First Consortium, which operates under the auspices of the Idaho Council on Developmental Disabilities - <http://www.icdd.idaho.gov/projects/employment%20first.html>

14. ILLINOIS:

- a. **IL Employment First Legislation (passed):** HB 2591 Illinois Employment First Act, passed in May 2013 – www.ilga.gov/legislation/98/HB/PDF/09800HB2591lv.pdf
- b. **Advocacy information for Illinois Employment First Act:** Information from the Family Support Network regarding advocating for the Illinois Employment First Act - <http://us2.campaign-archive1.com/?u=bcec73d19574f43e0b9ab00c1&id=d3db098f9a>
- c. **IL Employment First Act Fact Sheet:** Fact sheet for legislators on Illinois Employment First Act – www.thearcofil.org/wp-content/uploads/2013/04/Employment_First_Fact_Sheet_HB2591-03142013.pdf
- d. **Report recommending Employment First for Illinois:** January 2011 report of legislatively mandated *Employment and Economic Opportunity for Persons with Disabilities Task Force*, that includes a recommendation (pp. 7-8), that Illinois become an Employment First state, according to specific principles outlined within the report:
www.illinoislegaldid.org/calendarUploads/Governors%20task%20force%20report%20-%202010-11.pdf
- e. **Report from the IL Employment First Summit:** Report from 2012 IL Employment First summit - www.state.il.us/agency/icdd/pdf/Illinois%20Employment%20First%20Summit%20Report%205-11-12.pdf

15. INDIANA

- a. **IN APSE Employment First Statement:** Statement from Indiana APSE advocating for Employment First - www.inapse.org/styles/inapse/defiles/Employment-First-Statement-%203_27_13.pdf
- b. **IN APSE Employment First 2009 Follow-up:** Summary of follow-up items from 2005 Indiana Employment First Summit - www.inapse.org/styles/inapse/defiles/summit%20update%2012-15-09.pdf
- c. **IN Employment First Fact Sheet:** Fact sheet summarizing 2005 Indiana Employment First Summit - www.apse.org/docs/IN_APSE_empl_first_fact_sheet.pdf

16. IOWA

- a. **IA DHS Employment Vision:** Statement on Iowa Department of Human Services website in support of Employment First - <http://dhs.iowa.gov/mhds/disability-services/employment>
- b. **IA Employment First Initiative: A Call for Change of Historical Proportion:** Fall 2009 white paper outlining vision for an Employment First initiative in Iowa - www.iowa-apse.org/agendas/whitepaper.pdf
- c. **IA Employment First Initiative Summary Points:** One-page summary of rationale for Employment First



17. KANSAS

- a. **KS Employment First Legislation (passed):** Text of Kansas House Bill 2336 that establishes a statewide policy of employment first for all people with disabilities. Bill was signed into law in May 2011 - www.kslegislature.org/li/b2011_12/year1/measures/documents/hb2336_enrolled.pdf
- b. **KS Employment First Oversight Commission:** Website of the Kansas Employment First Oversight Commission established by the state's Employment First legislation - <https://kcdcinfo.ks.gov/employment-first>
- c. **KS Employment First Website:** Website with information on Employment First efforts in Kansas - <http://employment1st.org>

18. KENTUCKY

- a. **Employment First Legislation (proposed):** Proposed Employment First bill, HB 292, introduced in February 2013 - www.lrc.ky.gov/record/13RS/HB292.htm
- b. **KY DD Council Report:** Report from Kentucky's developmental disabilities council State Activities to Implement Employment First as the Employment Strategy for Individuals with Intellectual and Developmental Disabilities - www.hdi.uky.edu/setp/Materials/Employment_First_Report_Final_050713_corrected_071813.pdf

19. LOUISIANA - Employment First Policy: Office of Citizens with Developmental Disabilities web page on Employment First with link to July 2011 policy - <http://new.dhh.louisiana.gov/index.cfm/page/1847>

20. MAINE

- a. **ME Employment First Legislation (passed):** Maine Legislature Bill LD 1352 – Employment First legislation. Bill became law in June 2013 - www.mainelegislature.org/legis/bills/getPDF.asp?paper=SP0471&item=6&snum=126
- b. **ME Employment Policy:** 2010 Maine Department of Health and Human Services Employment Policy, indicating that all individuals are presumed able and have the opportunity to work - www.maine.gov/dhhs/policies/Employment_Policy_for_Individuals_Served.pdf
- c. **ME Employment First Website:** Website of ME Employment First coalition - www.employmentfirstmaine.org

21. MARYLAND

- a. **MD Development Disabilities Administration Position Statement on Employment Services:** October 2008 statement indicating employment in the community is first service option that should be considered - <http://dda.dhmdh.maryland.gov/SitePages/Training/DDA91809.pdf>
- b. **MD Employment First Overview:** 2008 overview of Maryland's Development Disabilities Administration Employment First initiative - www.reinventingquality.org/docs/ColleenGauruder-08.pdf

22. MASSACHUSETTS

- a. **MA Employment First Policy:** 2010 policy issuance from Massachusetts Department of Developmental Disability Services - www.mass.gov/eohhs/gov/laws-regs/dds/policies/s-employment-first-policy-2010-2.html
- b. **MA DDS RFQ:** Excerpts from 2009 Massachusetts Department of Developmental Disability Services service provider solicitation, highlighting a shift in Massachusetts to an Employment First Policy
- c. **MA Employment Blueprint:** Massachusetts state plan for increasing employment by the state developmental disability system and full implementation of the state's Employment First policy - www.addp.org/images/Nov2013Conference/blueprint%20for%20success%20full%20version%20final%2011.6.13.pdf



23. MICHIGAN

- a. **MI Employment First Report** – Report from MI Protection and Advocacy, Developmental Disabilities Institute – Wayne State University, and MI Developmental Disabilities Council, recommending Employment First legislation - http://mpas.org/sites/default/files/115075_mpa_employment_first_rprrt_prf5.pdf
- b. **MI DD Council Statement:** August 2013 Employment First Mission and Principles adopted by the MI Developmental Disabilities Council (look under “*Important Information*”) - www.michigan.gov/mdch/0,4612,7-132-2941_4868_4897-306627--,00.html
- c. **Employment Works! Policy:** June 2011 Bureau of Community Mental Health Services Employment Works! Policy indicating that all individuals with serious mental illness and development disabilities will be provided the opportunity to pursue integrated, competitive employment; intended to form the basis for a future Employment First policy - www.michigan.gov/documents/mdch/FY09-10MACContractwithallattachments_312218_7.pdf (pp.361-363- Attachment C6.8.7.1)

24. MINNESOTA

- a. **MN Employment First Policy:** MN Department of Human Services Employment First policy, approved in September 2014 - www.dhs.state.mn.us/main/groups/olmstead/documents/pub/dhs16_190416.pdf
- b. **MN Olmstead Plan:** In 2013, Minnesota’s state Olmstead plan called for the adoption of a state Employment First policy - copies of the plan and updates on the plan process are available at this website - http://www.dhs.state.mn.us/main/idcplg?IdcService=GET_DYNAMIC_CONVERSION&RevisionSelectionMethod=LatestReleased&dDocName=opc_home
- c. www.dhs.state.mn.us/main/groups/olmstead/documents/pub/dhs16_180147.pdf
- d. **MN Employment First Summit Reports:** Reports from MN Employment First Summits I, II, III, IV, held from 2007-2011 - www.mnapse.org/employment-first#!action/c1ulz
- e. **MN Employment Policy Initiative Website:** www.mn-epi.org/main

25. MISSISSIPPI

- a. **MS Legislation (passed):** 2015 legislation implementing an Employment First policy - <http://billstatus.ls.state.ms.us/documents/2015/pdf/HB/0800-0899/HB0836PS.pdf>
- b. **MS Executive Order:** January 2014 Executive Order directing state agencies to ensure employment in integrated settings as the first priority option to the extent feasible - www.governorbryant.com/wp-content/uploads/2012/07/EO-1335.pdf

26. MISSOURI

- a. **MO DDD Employment First Policy:** January 2011 Employment First Policy, issued by the Missouri Department of Mental Health, Division of Developmental Disabilities – <http://dmh.mo.gov/docs/dd/employmentpolicyfinal.pdf>
- b. **MO DDD Employment First and Transition:** Missouri principles on youth transition and Employment First - <http://dmh.mo.gov/dd/progs/employment.html>

27. MONTANA – Montana Employment First Initiative Statement: Montana Developmental Disabilities Program statement on Employment First - www.dphhs.mt.gov/Portals/85/dsd/documents/DDP/SELN/MontanaEmploymentFirstInitiative.pdf

28. NEVADA

- a. **NV Executive Order:** July 2014 Executive Order establishing a taskforce on integrated employment - http://gov.nv.gov/uploadedFiles/govnvgov/Content/News_and_Media/Executive_Orders/2014_Images/EO_2014-16.pdf



- b. **NV Governor's Council Employment Position Statement and Report:** 2014 Nevada's Governors Council on Developmental Disabilities position statement and report on integrated employment - <http://adsd.nv.gov/uploadedFiles/adsdnvgov/content/Boards/CSPD/OlmsteadSub/IntegratedEmploymentFinal.pdf>
 - c. **Employment First Legislative Presentation:** May 2014 presentation on Employment First to NV Legislature Committee on Senior Citizens, Veterans and Adults with Special Needs - www.leg.state.nv.us/interim/77th2013/Committee/StatCom/SeniorVetSpecial/Other/21-May-2014/VIAManningHarrington.pdf
 - d. **NV Governor's Council Employment Position Statement:** 2013 Nevada's Governors Council on Developmental Disabilities Position on Employment, recommending implementation of Employment First policies
29. **NEW HAMPSHIRE** – New Hampshire does not have an Employment First policy. However, New Hampshire's Bureau of Developmental Services (BDS) has a number of policies that emphasize integrated employment including:
- a. **BDS Employment Position Statement** - www.dhhs.nh.gov/dcbcs/bds/documents/employmentpositionstatement.pdf
 - b. **No Sheltered Work or Subminimum Wage** – New Hampshire BDS does not fund sheltered work services, and has no individuals earning subminimum wage - www.dhhs.nh.gov/dcbcs/bds/publications.htm
30. **NEW MEXICO** – **Employment First Webinar:** 2010 “Making Employment First a Reality in NM” webinar and text - <http://archive.nmhealth.org/ddsd/meaningfullife/EmployFirstRsrcs.htm#Sec3>
31. **NEW JERSEY**
- a. **NJ Governor's Declaration:** Governor's April 2012 press release announcing that New Jersey is an Employment First state - http://lwd.dol.state.nj.us/labor/lwdhome/press/2012/20120419_employment_first.html
 - b. **NJ DHS Statement: Statement on NJ Department of Human Services website stating that** competitive employment is the first and preferred post-education activity for everyone, including people with disabilities - <http://www.state.nj.us/humanservices/involved/employmentfirst.html>
 - c. **NJ DDD ISP Form:** NJ Department of Developmental Disabilities Individual Service Planning Form, that requires documentation regarding compliance with the state's Employment First policy - www.state.nj.us/humanservices/ddd/documents/Documents%20for%20Web/NJISP%20form.pdf
 - d. **NJ DD Council Statement:** Statement from NJ Council on Developmental Disabilities with recommendations for implementation of Employment First policy - www.njddd.org/2012-04-23-13-42-40/position-statements/employment
32. **NEW YORK**
- a. **Executive Order:** September 2014 Executive Order establishing Employment First Commission, to create an Employment First policy - www.governor.ny.gov/executiveorder/136
 - b. **Employment First Commission Report:** March 2015 report of the New York Employment First Commission - http://programs.governor.ny.gov/sites/default/files/Employment_First_March2015_final.pdf
33. **NORTH CAROLINA**
- a. **NC Employment First Website:** Information from the North Carolina Employment First Steering Committee, including position papers - www.ncdhhs.gov/mhddsas/services/employment
 - b. **NC APSE Article:** Article from North Carolina APSE calling for an Employment First Policy



34. NORTH DAKOTA

- a. **ND Legislation (passed):** Legislation signed into law in April 2013, establishing a Committee on Employment of People with Disabilities, for furthering the goal of employment as the first option for people with disabilities - www.legis.nd.gov/assembly/63-2013/documents/13-0182-04000.pdf?20130404122652
- b. **ND Committee Information:** Information on Committee on Employment of People with Disabilities, including meeting minutes - www.nd.gov/dhs/dvr/councils-partners/ndemployment.html
- c. **ND Employment First Summit Report:** October 2011 report summarizing the findings and plan of action resulting from the state's Employment First summit in October 2010

35. OHIO

- a. **OH Employment First Legislation:** Passed in July 2013 - Sec. 5123.022 of FY 2014 Budget Bill (H.B. 59) that includes language making Ohio's Employment First policy for individuals with developmental disabilities state law - http://archives.legislature.state.oh.us/BillText130/130_HB_59_EN_N.html; see p. 140 of bill analysis for summary of Employment First provisions - <http://www.lsc.ohio.gov/analyses130/13-hb59-130.pdf>
- b. **OH Employment First Executive Order:** March 2012 Governor's Executive Order establishing an Employment First Policy and Taskforce to Expand Community Employment Opportunities for Working-Age Ohioans with Developmental Disabilities - www.olrs.ohio.gov/sites/olrs.ohio.gov/files/u5/gov-employ-exec-order-2012-05k.pdf
- c. **OH Employment First Website:** State website with information and updates on Employment First in Ohio - www.ohioemploymentfirst.org
- d. **OH SELF Waiver Employment First Policy:** Ohio Department of Developmental Disabilities Self Empowered Life (SELF) Waiver, effective July 1, 2012, that institutes Employment First Policy - <http://dodd.ohio.gov/Medicaid/Documents/Technical%20Guide%20for%20SELF%20Waiver%207-11-12.pdf>
- e. **People First of Ohio Call to Action:** "Blazing New Trails to Employment" document from People First of Ohio, advocating for specific strategies to implement Employment First - www.disabilityrightsohio.org/sites/default/files/ux/pfo-summary-apr-2012.pdf
- f. **OH Employment First Form:** Form required for completion if an individual does not choose community employment - <http://dodd.ohio.gov/medicaid/Documents/DODD%20Employment%20First%20Form1.pdf>

36. OKLAHOMA

- a. **OK Employment First Bill** – Oklahoma Employment First Bill passed in 2015 - http://webserver1.lsb.state.ok.us/cf_pdf/2015-16%20ENR/hB/HB1969%20ENR.PDF
- b. **DDS Employment Policy:** Oklahoma Developmental Disabilities Services employment policy, stating that the optimal goal of waiver services is full-time employment in the community - www.okdhs.org/library/policy/oac317/040/07/0001000.htm

37. OREGON

- a. **OR Legislation:** Senate Bill 22, Employment First legislation, effective April 2013 - <https://olis.leg.state.or.us/liz/2013R1/Downloads/MeasureDocument/SB22/Enrolled>
- b. **OR DDS Policy:** Oregon Office of Developmental Disability Services October 2008 policy on employment for working age individuals - <http://ocdd.org/index.php/ocdd/docs/205/>
- c. **OR Executive Order:** Oregon Governor's Executive Orders, with specific actions, requirements, and targets, for increasing employment of individuals with intellectual and developmental disabilities
 - April 2013 Order - www.oregon.gov/gov/Documents/executive_orders/eo_13-04.pdf
 - February 2015 order - www.oregon.gov/gov/Documents/executive_orders/eo_15_01.pdf



- d. **OR DDS Employment First Initiative:** Oregon Department of Human Services website on Employment First - www.oregon.gov/dhs/employment/employment-first/Pages/index.aspx
- e. **OR Employment First Plan:** Plan developed for implementation of Employment First in Oregon - https://www.sidestreetshop.com/stores/195/libraries/articulate/wise_or_ef_recommendations_paper_1_28_2011_final_w_o_copyright_notice_1_.pdf
- f. **OR Employment First Initiative Website:** <http://employment-first.org>

38. PENNSYLVANIA

- a. **PA Employment Policy – 1990:** 1990 policy document from Pennsylvania Office of Mental Retardation directing that community employment be considered as a service option before less integrated, more restricted options - www.temple.edu/thetrainingpartnership/resources/mrBulletins/misc/6000-90-06.pdf
- b. **PA Employment Policy - General:** 2005 policy document from Pennsylvania Office of Mental Retardation on community employment as a priority - www.temple.edu/thetrainingpartnership/resources/mrBulletins/misc/00-05-07.pdf
- c. **PA Employment Policy – ICFs/MR:** 2005 policy document from Pennsylvania Department of Public Welfare on supporting community employment for individuals living in Intermediate Care Facilities for Individuals with Mental Retardation, indicating community employment as a priority without regard to level of disability - www.temple.edu/thetrainingpartnership/resources/mrBulletins/icf/00-06-08.pdf
- d. **PA APSE Presentation:** 2014 presentation by PA APSE – “Pennsylvania’s Employment First Path” - www.networksfortraining.org/downloads/pdfs/2012_13/Pennsylvanias%20Employment%20First%20PAT_H.pdf
- e. **ARC Statement:** ARC of Pennsylvania statement in support of Employment First (look under Employment) - www.thearca.org/resources/positionpapers

39. RHODE ISLAND

- a. **RI BHDDH Employment First Policy:** February 2013 Employment First policy for individuals with developmental disabilities issued by the Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals – www.riemploymentfirst.ri.gov/policy/efpolicy.php
- b. **RI Employment First Overview** – Overview of Employment first from Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals - www.riemploymentfirst.ri.gov
- c. **USDOJ Consent Decree Mandating Employment First for Transition:** 2014 consent decree with US Department of Justice, mandating an Employment First Policy for the Rhode Island Department of Education - www.ada.gov/olmstead/olmstead_cases_list2.htm#ri-state
- d. **RI BHDDH Policy Regarding New Entrants to System:** Policy issuance from Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals, regarding compliance of new entrants to system with Employment First policy
- e. **RI Employment First Summit Report:** Report of Employment First Summit held in March 2010 - www.rhodesoindependence.org/docs/final%20summary%20report.pdf
- f. **RI Employment First Policy White Paper:** November 2010 paper discussing options for Employment First legislation in Rhode Island - www.rhodesoindependence.org/docs/Policy%20White%20Paper%20-%20Final%20-%20%2011.23.10.pdf
- g. **RI 1115 Waiver Group Report:** September 2009 paper which contains initial proposal for Rhode Island to be an Employment First state - www.ohhs.ri.gov/documents/documents09/Employmt_Wkgrp_recs.pdf

40. SOUTH DAKOTA

- a. **SD Governor’s Statement:** July 2013 statement from Governor of South Dakota, declaring goal of making South Dakota an Employment First state - <http://news.sd.gov/newsitem.aspx?id=14821>



- b. **SD Taskforce Report:** January 2014 South Dakota Employment Works Taskforce Report on increasing employment of people with disabilities, as a result of Governor's Employment First Initiative - [http://dhs.sd.gov/EWTF/Employment%20Works%20Task%20Force%20report%20\(FINAL\).pdf](http://dhs.sd.gov/EWTF/Employment%20Works%20Task%20Force%20report%20(FINAL).pdf)

41. SOUTH CAROLINA – SCDDSN Policy Statement: Policy statement from SC Department of Developmental Disabilities and Special Needs Day Services Manual “embracing the principles of employment first” - <http://ddsn.sc.gov/providers/manualsandguidelines/Documents/dayervicesmanual/Employment%20First%20in%20South%20Carolina.PDF>

42. TENNESSEE

- a. **TN DMRS Employment First Statement:** 2003 statement of support from the Tennessee Division of Mental Retardation Services in support of Tennessee's Employment First! Initiative - www.onestops.info/resources/TN_CEP/Employment_First_Final.doc
- b. **TN Executive Order:** June 2013 Governor's Executive Order establishing the Tennessee Employment First Initiative - www.tn.gov/sos/pub/execorders/exec-orders-haslam28.pdf
- c. **TN EF Report:** September 2014 report from the Tennessee Employment First Task Force - http://tn.gov/didd/employment-1st/docs/taskforce/ExpectEmployment-Sept_2014.pdf
- d. **TN DIDD Employment First Website:** Employment First section of Tennessee Department of Intellectual and Developmental Disabilities website - <http://www.tn.gov/didd/topic/employment-first>
www.tn.gov/didd/employment-1st
- e. **TN DMRS Provider Manual Excerpt:** Excerpt from 2005 Tennessee Division of Mental Retardation Services provider manual regarding Employment First, and requirements for vocational evaluation (situational assessment) every three years. To find this excerpt, go to the full manual and search for “Employment First” – www.state.tn.us/dids/provider_agencies/Provider%20Manual.pdf
- f. **TN Employment First Overview:** Publication from the Institute for Community Inclusion providing an overview of Tennessee's Employment First policy - www.communityinclusion.org/article.php?article_id=202

43. TEXAS

- a. **TX Legislation (passed):** June 2013 Texas Senate Bill 1226, establishing that earning a living wage through competitive employment is the preferred outcome for individuals with disabilities - www.statutes.legis.state.tx.us/Docs/GV/htm/GV.531.htm#531.02447
- b. **TX EF Taskforce:** Website of Texas Employment First Taskforce with link to September 2014 report to the legislature - www.dads.state.tx.us/providers/supportedemployment/pi/index.html
- c. **TX DD Council Statement on Employment First:** Texas Council on Developmental Disabilities statement calling for actions that align with state's Employment First policy - <http://tcdd.texas.gov/public-policy/position-statements/position-statement-employment>

44. UTAH

- a. **UT 2011 Legislation (passed):** HB 240, signed into law in March 2011, requiring that employment be the first priority for individuals with disabilities receiving services from the Department of Workforce Services, the Utah State Office of Rehabilitation, and the Division of Services for People with Disabilities - <http://le.utah.gov/~2011/bills/hbillenr/hb0240.pdf>
- b. **UT 2012 Legislation (passed):** HB 240, signed into law in March 2012, requiring that employment be the first priority for individuals with disabilities receiving services from the Department of Workforce Services, and Division of Substance Abuse and Mental Health - <http://le.utah.gov/~2012/bills/hbillenr/HB0296.pdf>
- c. **UT Employment First Report:** August 2012 Utah Employment First Report



45. **VERMONT** – Vermont does not have an Employment First policy. However, Vermont’s Developmental Disability Services in the state Department of Disability and Aging Services has a number of policies in support of an Employment First paradigm. Among these are:

- a. **VT Employment Philosophy:** A public stated philosophy that presumes employability for all - <http://ddas.vermont.gov/ddas-programs/programs-se-default-page>
- b. **VT Funding Policy:** For those receiving employment supports, use of funds for sheltered workshops or enclaves is not allowed– p. 43 of System of Care Plan - <http://ddas.vermont.gov/ddas-policies/policies-dds/policies-dds-documents/policies-dds-documents-soc-plans/socp-fy-15-17>

46. VIRGINIA

- a. **VA DBHDS Policy on Employment First:** December 2012 Virginia Department of Behavioral Health and Developmental Services policy on Employment First - www.dbhds.virginia.gov/library/document-library/approved%201044%20_sys_%2012-1.pdf
- b. **VA Legislation (passed):** Joint Virginia and Senate House Resolution, passed in 2012, encouraging the Secretary of Health and Human Resources and the Superintendent of Public Instruction to adopt and implement Employment First practices in providing and coordinating services to Virginians with disabilities- <http://lis.virginia.gov/cgi-bin/legp604.exe?121+sum+SJ127>
- c. **USDOJ Settlement Agreement Mandating Employment First Policy:** US Department of Justice settlement with the state of Virginia mandating implementation of an Employment First policy - www.ada.gov/olmstead/olmstead_cases_list2.htm#va
- d. **VA DBHDS Strategic Plan for Employment First:** October 2012 Employment First strategic plan issued by Virginia Department of Behavioral Health and Developmental Services - www.dbhds.virginia.gov/library/document-library/dbhdsstrategicplanforemploymentfirst_final.pdf

47. WASHINGTON STATE

- a. **WA State Policy:** Washington Division of Developmental Disabilities Working Age Adult Policy; initially adopted in 2004, most recently updated 2012 - www.dshs.wa.gov/sites/default/files/DDA/dda/documents/policy/policy4.11.pdf
- b. **WA State Legislation:** Legislation passed in 2012 establishing parameters around employment as first priority for individuals with developmental disabilities, with option of alternative community access program - <http://apps.leg.wa.gov/documents/billdocs/2011-12/Pdf/Bills/Senate%20Bills/6384.pdf>
- c. **ICI Pub-Washington WAAP:** Publication from the Institute for Community Inclusion providing an overview of the development of Washington’s Working Age Adult Policy - www.communityinclusion.org/article.php?article_id=222

48. WEST VIRGINIA

- a. **WV Disability Consensus Agenda** – West Virginia Disability Consensus Agenda endorsed by a cross-section of West Virginia advocacy organizations includes Employment First as a goal - www.wvsilc.org/advocacy.htm
- b. **WV Olmstead council Legislative Priorities** – West Virginia Olmstead Legislative Priorities for 2015 include Employment First - www.mtstcil.org/advocacy/WestVirginiaOlmsteadCouncilLegislativePriorities2015.pdf

49. WISCONSIN

- a. **WI Employment First Website:** Website of Wisconsin Employment First - www.wiemploymentfirst.com
- b. **WI APSE Employment First Materials:** Information from WI APSE on Employment First: www.wiapse.org/employment-first
- c. **Sign-On Agreement for WI Employment First Coalition:** Agreement for organizations and individuals for signing on in support of Employment First -



www.survivalcoalitionwi.org/wp-content/uploads/2011/12/Survival-Coalition-Employment-sign-on.pdf

- d. **WI Managed Care and Employment Task Force:** 2008 report recommending that the managed care long-term care system should support integrated employment as the preferred employment option (pp. 19-20) - <https://www.dhs.wisconsin.gov/employment-skills/mcetf-finalreport.pdf>

50. WYOMING

- a. **WY Legislation (passed):** Enrolled Act No. 54, Employment First Legislation, enacted July 1, 2014 - <http://legisweb.state.wy.us/2014/Enroll/HB0073.pdf>
- b. WY Employment First Web Page: Wyoming Department of Health webpage on the state's Employment First efforts - www.health.wyo.gov/ddd/Wyomingemploymentfirstinitiative.html

International Efforts

CANADA

- a. **Alberta Human Services Employment First Initiative** – Information on Province of Alberta Human Services Employment First Strategy - <http://humanservices.alberta.ca/disability-services/employment-first.html>
- b. **Canadian Association for Community Living Reports:**
 - *Achieving Social and Economic Inclusion: From Segregation to Employment First* - Report on implementing an Employment First policy framework for individuals with intellectual and developmental disabilities - www.cacl.ca/publications-resources/achieving-social-and-economic-inclusion-segregation-employment-first
 - *Putting Employment First For Youth with Intellectual Disabilities* – Report on Employment First as it applies to transition - <http://readywillingable.ca/wp-content/uploads/2013/03/Youth-transitions-to-employment-guide-Final1.pdf>
- c. **IRIS Report** – Report on employment of people with disabilities in Canada from the Institute for Research and Development for Inclusion and Society, that includes information on Employment First efforts in Canada - <https://irisinstitute.files.wordpress.com/2012/01/six-key-elements-for-an-inclusive-labour-market.pdf>



SELN Working Document



The State Employment Leadership Network (SELN) is a cross-state cooperative venture of state MR/DD agencies that are committed to improving employment outcomes for adolescents and adults with developmental disabilities. Working documents contain information collected in response to state requests, and federal, state and local initiatives of interest to the SELN membership. They are intended to share work in progress but may not be a comprehensive analysis or compilation. Working documents are updated over time as information changes.

Learn More and Get Involved

To learn more about the SELN and how membership can benefit your organization, contact:

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